Geeta Devi And 3 Others vs State Of U.P. Thru. Addl. Chief Secy. ... on 21 November, 2024

Author: Rajeev Singh

Bench: Rajeev Singh

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HIGH COURT OF JUDICATURE AT ALLAHABAD, LUCKNOW BENCH



?Neutral Citation No. - 2024:AHC-LKO:76890

Court No. - 13

Case :- APPLICATION U/S 482 No. - 9773 of 2024


Applicant :- Geeta Devi And 3 Others

Opposite Party :- State Of U.P. Thru. Addl. Chief Secy. Home Lko. And Another

Counsel for Applicant :- Amol Kumar Srivastava

Counsel for Opposite Party :- G.A.,Shivang Dwivedi


Hon'ble Rajeev Singh,J.
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1. Heard learned counsel for the applicants, learned A.G.A. for the State and learned counsel for victim.

2. This application under Section 482 Cr.P.C. has been filed for quashing the proceedings of Criminal Case No. 2491 of 2022; State vs Santosh Kumar @ Pintoo and others, arising out of Case Crime No. 92 of 2022, under Sections 376D, 342, 109, 506 IPC, Police Station Haraiyya, District Balrampur, and summoning order dated 08.09.2022 passed by the Chief Judicial Magistrate, Balrampur as well as charge sheet dated 14.08.2022.

2. On 05.11.2024 following order was passed:-

"1. Counter affidavit along with Vakalatnama filed by Shri Shivang Dwivedi, Advocate on behalf of opposite party no.2 is taken on record.

2. Learned counsel for the parties jointly informed that on the behest of uncle, criminal proceeding in question was initiated and the opposite party no.2/complainant of the case in question does not want to prosecute the applicants as the issue in question has already been resolved by way of compromise dated 21.10.2024.

3. List this case on 21.11.2024 at 11:30 AM.

4. In the meantime, SHO concerned is directed to verify the contents of the compromise arrived at between the parties.

5. On the next date, parties shall appear in person before this Court.

6. Registry is directed to show the name of Shri Shivang Dwivedi as counsel for the opposite party in the cause list whenever the case is listed."

3. In pursuance of the aforesaid order, parties are present.

4. Learned counsel for applicants has submitted that husband of applicant no.1 died much earlier and she maintained her daughter who is respondent no.2. He has submitted that brother in law of applicant no.1 (devar) was inimical due to ancestral property dispute and tutored her daughter-respondent no.2 to lodge the FIR. Thereafter, the FIR in question was lodged by the respondent no.2 with the allegation of gang rape committed by associate of the mother/neighbours and after investigation charge sheet was submitted by the Investigating Officer in the most mechanical manner without considering the evidence provided by the applicant no. 1 to him.

5. He has also submitted that now the victim of the present case is realized her mistake and moved applications to the several officers and has filed counter affidavit before this Court wherein it has been admitted that incorrect fact was narrated before the Investigating Officer under the influence of her uncle, who was willing to acquire the property of her father and presently she is major and she does not want to prosecute her mother as well as villegers/neighbours.

He has relied upon the judgment of this Court in the case of Fakre Alam @ Shozil vs. State of U.P. and others, decided on 06.06.2023 in Application under Section 482 No. 41580 of 2022 and requested for kind indulgence of this Court.

6. Learned A.G.A. vehemently has opposed the prayer of applicants and submitted that charge sheet has already been filed.

7. Learned counsel for victim has categorically stated that the victim was influenced by her uncle, who was willing to acquire the property of her father, therefore, the impugned proceedings may

liable to be quashed.

8. Considering the submissions of learned counsel for the parties and going through the contents of the FIR as well as other relevant documents, it is evident that husband of applicant no.1 died much earlier and FIR was lodged by the respondent no.2 at the behest of brother-in-law of applicant no.1 who was willing to acquire the property of her husband but now the victim realizes the correct facts.

9. In view of above, the application is allowed and the impugned proceedings of Criminal Case No. 2491 of 2022; State vs Santosh Kumar @ Pintoo and others, arising out of Case Crime No. 92 of 2022, under Sections 376D, 342, 109, 506 IPC, Police Station Haraiyya, District Balrampur are hereby quashed.

Order Date :- 21.11.2024/Renu